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Case Number: 25PSCV04322 Hearing Date: July 22, 2026 Dept: 6

CASE

NAME: Crystal Lynne

Saxton v. The Calvo Family Housing Limited Partnership, et al.

Motion

to Substitute Fawntaine La France Saxton, Laronda Jeanette Whitaker, Rondal Van Saxton, Jr., and Roshawn Anthony Saxton for Deceased Plaintiff Crystal Lynn Saxton as Successors in Interest

TENTATIVE

RULING

The Court will continue the hearing the Motion to Substitute Fawntaine La France Saxton, Laronda Jeanette Whitaker, Rondal Van Saxton, Jr., and Roshawn Anthony Saxton for Deceased Plaintiff Crystal Lynn Saxton as Successors in Interest to allow Moving Parties to submit a supplemental declaration correcting the issues identified herein.

Moving Parties are ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a premises liability case. On December 2, 2025, plaintiff Crystal Lynne Saxton (Plaintiff) filed this action against defendants The Calvo Family Housing Limited Partnership, Paul Calvo, Peggy Calvo (collectively, Defendants), and Does 1 through 50, alleging causes of action for negligence and premises liability.

On May 28, 2026, Fawntaine La France Saxton, Laronda Jeanette Whitaker, Rondal Van Saxton, Jr., and Roshawn Anthony Saxton (collectively, Moving Parties) filed a motion to be substituted as successors in interest for deceased Plaintiff. The Motion is unopposed.

LEGAL
STANDARD

“On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest.” (Code Civ. Proc., § 377.31.)

“(a)

The person who seeks to commence an action or proceeding or to continue a pending action or proceeding as the decedent's successor in interest under this article, shall execute and file an affidavit or a declaration under penalty of perjury under the laws of this state stating all of the following:

(1) The decedent's name.

(2) The date and place of the decedent's death.

(3)

“No proceeding is now pending in California for administration of the decedent's estate.”

(4)

If the decedent's estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest.

(5) Either of the following, as appropriate, with facts in support thereof:

(A)

“The affiant or declarant is the decedent's successor in interest (as defined

in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding.”

(B)

“The affiant or declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding.”

(6)

“No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding.”

(7)

“The affiant or declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct.”

(b)

Where more than one person executes the affidavit or declaration under this section, the statements required by subdivision (a) shall be modified as appropriate to reflect that fact.

(c)

A certified copy of the decedent's death certificate shall be attached to the affidavit or declaration.

(Code Civ.
Proc., § 377.32.)

DISCUSSION

Moving Parties seek to be substituted in place of Plaintiff, who died on December 21, 2025, under Code of Civil Procedure section 377.31. Moving Parties, who are Plaintiff's children, indicate that they are Plaintiff's only surviving heirs and successors in interest. Moving Parties represent that there are no probate proceedings or other heirs.

The Court finds the Motion fails to comply with Code of Civil Procedure section 377.32, subdivision (c), by failing to provide a certified copy of Plaintiff's death certificate. The Moving Parties' declaration refers

to the death certificate, but it is not attached. (See Declaration of Successors in Interest, ¶ 7.) The Moving Parties' declaration also indicates that they are authorized to act on behalf of Plaintiff's successor in interest, but the Moving Parties in the moving papers indicate that they are Plaintiff's children and successors in interest. (See Declaration of Successors in Interest, ¶¶ 1, 5; Motion, 3:15-16.) The declaration appears to have referenced Code of Civil Procedure section 377.32, subdivision (a)(5)(B), rather than subdivision (a)(5)(A). (Code Civ. Proc., §§ 377.11, 377.32, subd. (a)(5).) The declaration otherwise appears to comply with the requirements of Code of Civil Procedure section 377.32, subdivision (a). (Id., § 377.32, subd. (a).)

Based on the foregoing, the Court DENIES the Motion without prejudice.

CONCLUSION

The Court will continue the hearing the Motion to Substitute Fawntaine La France Saxton, Laronda Jeanette Whitaker, Rondal Van Saxton, Jr., and Roshawn Anthony Saxton for Deceased Plaintiff Crystal Lynn Saxton as Successors in Interest to allow Moving Parties to submit a supplemental declaration correcting the issues identified herein.

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